

IN THE SUPREME COURT OF THE
DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

S.C. Spl. L.A. No. 258/2013
C.A. [Writ] No. 510/2011

In the matter of an Application for Special
Leave to Appeal to the Supreme Court from
a Judgment of the Court of Appeal

1. M. Kanagaratnam,
Sri Bhadra Kali Amman Kovil,
Munneswaram, Chilaw
7th Respondent-Petitioner
2. Kalimuttu Sivapathasunderam,
Sri Bhadra Kali Amman Kovil,
Munneswaram, Chilaw
8th Respondent-Petitioner
3. Mahendrasamy,
Sri Bhadra Kali Amman Kovil,
Munneswaram, Chilaw
9th Respondent-Petitioner

Vs.

1. Sri Bodhiraja Foundation,
Sri Bodhiraja Dhamayathanaya,
Embilipitiya
2. Jathika Sangha Sammelanaya,
Jathyanthara Thorathuru Saha Dharma
Paryeshayathanaya,
Gothami Mawatha,
Rajagiriya.
3. Olcott Gunasekara, President,
Dharmavijaya Foundation, No. 380/7,
Sarana Road, Colombo 7

4. Ven. Bandirippuwe Vineetha Thero,
Thuparamaya, Bandirippuwa, Lunuwila
5. Iragani de Silva, Chairperson- Animal
Welfare Trust, No. 93/20, Elvitigala
Mawatha, Colombo 8
6. Vishaka Tillekarathne, Trustee,
Animal Welfare Trust,
No. 73/2, Kirulapone Avenue,
Colombo 5
7. Lorraine Margueritte Bartholomeusz,
Vice President
Sri Lanka Animal Protection Association,
No. 5/3, Sulaiman Terrace,
Colombo 5
8. Sharmini Desiree Ratnayake,
Secretary,
Sri Lanka Animal Protection Association,
No. 6/2, De Silva Road, Kalubowila
9. Sagarica Rajakarunanayake,
President, “Sathwa Mithra”,
No. 73/28, Sri Saranankara Place,
Dehiwala
10. Lalani Serasinghe Perera,
No. 14, Nuwarawatte,
Nawala
11. Dr. Chamith Nanayakkara,
No. 5, New Station Road,
Sarasavi Uyana
12. Somasiri Alokolange,
No. 15/3, Peiris Mawatha,
Kalubowila, Dehiwala

13. Nikita Ravin Tissera,
No. 29/8, Pangiriwatte Road,
Mirihana, Nugegoda
14. Gamini Wanigaratne,
No. 733/62, Gurugewatte,
Koraleima, Gonapola
Petitioners-Respondents
15. Inspector General of Police,
Police Headquarters,
Colombo
16. Deputy Inspector General of Police, Deputy
Inspector General's Office, Puttalam
17. Senior Superintendent of Police Chilaw,
Senior Superintendent's Office,
Chilaw
18. Officer-in-Charge,
Police Station, Chilaw
19. Urban Council of Chilaw,
Puttalam Road, Chilaw
20. Chairman,
Urban Council of Chilaw,
Puttalam Road, Chilaw
21. President,
All Ceylon Hindu Congress,
No. 91/5, Chittampalam A. Gardiner Mawatha,
Colombo 12
22. Hon. Attorney General,
Attorney General's Department,
Colombo 12
Respondent-Respondents

BEFORE : **MOHAN PIERIS. P.C. C.J.**
PRIYASATH DEP. P.C. J &
ROHINI MARASINGHE. J

COUNSEL : S. Sivarasa, P.C., with K.V.S. Ganesharajan for the 7th
 and 8th Respondent-Petitioners
 A.R. Surendran, P.C., with N. Kandeepan and M. Jude
 Dinesh for the 8th Respondent-Petitioner
 Raja Dep with K.A. Upul Anuradha Wickramaratne
 for the 2nd Petitioner-Respondent
 Manohara de Silva, P.C., with Arienda Wijesurendra for
 the 1st, 3rd to 14th Petitioners-Respondents
 P. Ranasinghe, D.S.G., for the A.G.

ARGUED ON : 21.07.2014

**WRITTEN SUBMISSIONS OF THE 7TH, 8TH AND 9TH
 RESPONDENTS-PETITIONERS**

TENDERED ON : 09.06.2014 & 28.07.2014

**WRITTEN SUBMISSIONS OF THE
 5TH AND 6TH RESPONDENTS**

TENDERED ON : 16.06.2014

**WRITTEN SUBMISSIONS OF THE
 1ST, 3RD – 10TH, 12TH AND 13TH
 PETITIONERS-RESPONDENTS**

TENDERED ON : 28.07.2014

**WRITTEN SUBMISSIONS OF THE
 8TH RESPONDENT**

TENDERED ON : 13.06.2014

DECIDED ON : 03.09.2014

In the instant case before us the 7th, 8th and 9th Respondents-Petitioners (hereinafter referred to as Petitioners) have appealed to this Court from the judgment of the Court of Appeal dated 29.08.2013 which resulted from the application originally filed by the Petitioners-Respondents (hereinafter referred to as Respondents) in judicial review proceedings.

The Court of Appeal in its judgment dated 29.08.2013 issued a writ of mandamus directing the 1st, 2nd and 4th Respondents (Respondents-Respondents) to take all necessary action as permitted and empowered by law to prevent :

- 1) the slaughter of animals defined in the definition of the Butchers Ordinance at the Sri Badra Kali Amman Kovil, Munneswaram Chilaw if the 7th, 8th and 9th Respondents do not possess a license issued under the Butchers Ordinance and/or if they violate the provisions of the Butchers Ordinance; and
- 2) the slaughter of animals defined in the definition of Cruelty to the Animals Act at Sri Badra Kali Amman Kovil, Munneswaram Chilaw if they violate the provisions of the Cruelty to the Animals Act.

Being aggrieved by the judgment dated 29.08.2013 the Petitioners have preferred this appeal to the Supreme Court contending inter alia that the Court of Appeal was in error in issuing the writ of mandamus directing the 1st to 4th Respondents-Respondents to act against the petitioners in the event they did not possess a Butcher's License and if they violated the Prevention of Cruelty to the Animals Ordinance.

The judgment of the Court of Appeal which is sought to be impugned in these proceedings contains the following salient holding-

- (a) the word “trade” in section 4(1) of the Butchers Ordinance cannot be interpreted to say that includes only the person who sells or exposes for sale the meat. In the view of the Court of Appeal, the word “trade” in the aforesaid section also includes a person who does the work of a butcher and the person who turns carcass of an animal into meat.
- (b) For the aforesaid reasons, the Petitioners have carried on the trade of a butcher.
- (c) For the reasons adumbrated above, the priest of the Kovil or the persons in charge of the Kovil must obtain a license under section 4 of Butchers Ordinance to kill animals defined in section 2 of the Butchers Ordinance.
- (d) The 8th and 9th Respondents (the 2nd and 3rd Petitioners before the Supreme Court) admit in their statement of objections before the Court of Appeal that animal sacrifice takes place in the Kovil. They do not have a license issued under the Butchers Ordinance. As a result there is a violation of section 4 of the Butchers Ordinance.
- (e) If the Petitioners or their agents or servants or employees kill animals without a license issued under the provisions of the Butchers Ordinance, they will commit an offence and the police will then be entitled to prevent the killing of animals in the Kovil premises. Then the police should take actions to prevent violations of the Butchers Ordinance.

The Court of Appeal came to the finding that the Petitioners carried on the trade of a butcher; that they have killed animals without a butcher's license; that they have violated section 4 of the Butchers Ordinance. The Court of Appeal further held that Police will be entitled to prevent the killing of animals if the petitioners do not possess a license under the Butchers Ordinance and if they violate the provisions of the Cruelty to the Animals Act.

In both the oral and written submissions, the Petitioners raised several contentions to assail the judgment of the Court of Appeal. It has been contended that the killing of animals that takes place annually is a ritual sacrifice and it cannot be classified as carrying on trade. In fact it is undeniable that the antiquity of this event has been commented upon in ***Balasunderam v Kalimuththu* 79 (1) NLR 361 at 379**. One cannot detract from the religious significance of the events taking place at Munneswaram and I do not even call in question the pertinent comments of Parinda Ranasinghe J (as he then was) in ***Premalal Perera v Weerasuriya and Others* 1985 2 Sri.LR 177** –“ Beliefs rooted in religion are protected. The religious beliefs need not be logical, acceptable, consistent or comprehensible in order to be protected. **Unless the claim is bizarre and clearly non-religious in motivation, it is not within the judicial function and the judicial competence to enquire whether the persons seeking protection has correctly perceived the commands of his particular faith.** The Courts are not the arbiters of scriptural interpretation and should not undertake to dissect the religious beliefs.”

As the learned judge pointed out in the above passage, we would not be trespassing into the domain of theological interpretation or questioning the foundation of a religious practice rooted in antiquity. Both the Court of Appeal and this Court are confronted with a claim the pith and substance of which, to my mind, is non-religious in motivation namely the religious

practice albeit of ancient provenance from time immemorial must be validated by law if it were to or were likely to fall foul of the law of the land. In fact one is taken to the pleadings in the Court of Appeal and the Supreme Court to ascertain the nature of claims that initiated judicial review in the Court of Appeal.

It is pertinent to observe that the Respondents sought writs of prohibition and mandamus in their petition and they had prayed for the following reliefs.

- a) a mandate in the nature of a writ of prohibition restraining the 5th and /or 6th Respondents or any person authorised by them from issuing an annual or a temporary license or any other approval or authorization whatsoever under section 4 of the Butchers Ordinance to the 7th, 8th and/or the 9th Respondents or their representatives to carry on the slaughter of animals at the Sri Bhadra Kali Amman Kovil;
- b) a mandate in the nature of a writ of mandamus directing the 1st, 2nd, 3rd and 4th Respondents to forthwith take all necessary action as permitted and empowered by law to prevent the cruelty and slaughter of animals taking place at the said purported ritual conducted at the Sri Badra Kali Amman Kovil, in Chilaw.
- c) A mandate in the nature of a writ of mandamus directing the 1st, 2nd, 3rd and 4th Respondents to forthwith direct officers functioning under the purview to prevent the cruelty and the slaughter of animals taking place at the said ritual conducted at the Sri Bhadra Kali Amman Kovil.

In opposition to the matters raised in the petition, the Petitioners (the 2th, 8th and 9th Respondents in the Court of Appeal) had stated the following in their statement of objections -

- a) The said Kovil is an ancient kovil which has a history of more than 350 years.
- b) The worship and poojas at the said Kovil are conducted according to traditional religious rites in which very renowned and revered Sivachariyars participate during the annual festival. A large number of devotees from all parts of the country participate at the annual temple festival which is held in August/September each year and the Kovil Utsavam consists of many poojas, oblations and offerings performed to invoke the blessings of Mother Kali.
- c) During the annual festival a large number of devotees observe a fast everyday at the said Kovil as a common spiritual discipline observed in the Hindu religion, which is followed by Thanam (Dhanna) where a large number of people and devotees are fed during this period.
- d) The annual festival ends with the velvi day which is an integral part of the ritual worship of the deity Sri Badra Kali Amman.
- e) The offering of animal sacrifices which takes place during the annual festival is a long-standing religious practice observed at the said Kali Kovil and that any attempt on the part of the Petitioners to seek the assistance of the Police to stop the conduct of the said religious festival would be untenable and tantamount to an unreasonable and unwarranted interference

with the 8th Respondent's fundamental rights guaranteed under Articles 10 and 14 (i) (e) of the Constitution.

- f) The offering of animal sacrifice to Goddess Kali that takes place at the Kovil is not carried out in a cruel manner as alleged by the petitioners and that the photographs annexed to the Petition in the Court of Appeal are not authentic and portrays a distorted picture of an act of religious fervor, which amounts to belittling and trivializing the genuine religious belief of pious devotees.
- g) The offering of animal sacrifice which takes place during the annual festival is a long standing religious practice observed at the said Kali Kovil.
- h) That the provisions of the Butchers Ordinance, the Prevention of Cruelty to Animal Ordinance and the Local Authorities (Standard by Laws) do not discountenance sacrifice of animals as part of a religious festival.

It has to be observed that though the Petitioners denied in their affidavits in the Court of Appeal an affidavit filed by one Augustine Fernando, the contents of the affidavit for the purposes of the record are to the effect that cruelty to animal does take place when the religious ritual is in progress and the Court of Appeal makes reference to the affidavit tendered by the said Augustine Fernando.

Be that as it may, the question before this Court is whether the Court of Appeal correctly interpreted the legislation and law that regulate animal welfare in this country and applied that correct interpretation to the facts and circumstances in this case. This Court, though sitting in appeal over a decision of the Court of

Appeal made in its supervisory jurisdiction, has to be guided by that gladsome jurisprudence gleaned from **the GCHQ case (R v Minister for the Civil Service ex p Council of Civil Service Unions (1985))**. Lord Diplock divided the grounds of review under three heads -

“Judicial review has I think developed to a large state today when without reiterating any analysis of the steps by which the development has come about, one can conveniently classify under three heads-the grounds upon which administrative action is subject to control by judicial review. The first ground I would call illegality, the second irrationality and the third procedural impropriety.”

Lord Diplock gave a very brief definition of illegality -

“By illegality as a ground for judicial review I mean that the decision maker must understand correctly the law that regulates the decision-making and must give effect to it.”

Has the Court of Appeal by giving its interpretation to the word “trade” in section 4 (1) of the Butchers Ordinance erred in law? The Court of Appeal has arrived at a finding that the carcasses of the animals slaughtered on the day of the festival are turned into meat and given by way of alms to devotees who flock to the Kovil.

The Court of Appeal has concluded that the term “trade” in section 4(1) of the Butchers Ordinance cannot be interpreted to mean that it includes only the person who sells or exposes for sale meat. It could embrace a person who does the work of a butcher and a person who turns carcass into meat. This Court is in agreement with this view of the Court of Appeal on the interpretation of the word “trade” and conflated with the meaning given to the word “Butcher” in section 2 of the Butchers Ordinance which is an inclusive definition namely- “Butcher shall include every person that slaughters animals or exposes for sale

the meat of animals slaughtered in Sri Lanka”, this Court concludes that the person that slaughters animals on the festival day and turns carcass to meat cannot fall outside the definition of butcher as stipulated in the Butchers Ordinance. In fact the slaughter of animals begins with acquisition by sale or otherwise and the constituent elements of the whole process include transportation which may involve passing of consideration and one cannot divorce the preparation, attempt and the final act of slaughter into separate and distinct compartments. All these activities entail trade at some stage and one cannot view only the slaughter per se and contend that the offering of animals falls outside trade. Neither is the slaughter of a large number of the voiceless majority as these vertebrates are called a back garden operation as some devotees indulge in at their homes. As such the ritualistic sacrifice partakes of the features of the extended meaning of trade.

That is what impels us to incline to the view of the Court of Appeal that inherent in the ritual there is trade and in any event we cannot superimpose the plain meaning of trade as adumbrated by overseas jurisdictions or dictionaries on to the word “trade” that appears in our domestic legislation regulating animal welfare. The plain meaning of trade as connoting only the acts of selling and buying is restrictive in a Sri Lankan domestic law context and it is inherent in the culmination of slaughter and the attendant alms giving and oblations on the festival day that trade takes place and thus the term “trade” has an expansive intent in the Sri Lankan context. Thus there is no illegality in the interpretation of this term and thus this reasoning would in the end necessitate a Butcher’s License to be obtained in terms of the procedure established by law. This Court is of the view that when the Court of Appeal concluded that the slaughter of animals on the festival day in Munneswaram has to be sanctioned by the imprimatur of a license, this Court finds no error of law in that reasoning and I am fortified by another factor that leans in favor of affirming the judgment of the Court of Appeal.

One has to bear in mind that the legislation in question namely Butchers Ordinance and Cruelty to Animals Ordinance that regulate the subject matter of animals are neutral and non religion specific enactments which afford uniform treatment regardless of whoever slaughters animals or inflicts cruelty to animals and such intendment of the legislature cannot be advanced on the grounds of derogable exemptions afforded on the basis of religion. The only section –section 17 (1) of the Butchers Ordinance and the proviso thereto as pointed out by the Court of Appeal may facilitate the cause of the Petitioners and it would appear that this Court cannot comment on the availability or otherwise of the benefit afforded by the proviso to section 17(1) in the absence of any such orders made thereunder having been placed before us.

Let me point out that Article 14 (1) (e) –the freedom, either by oneself or in association with others, and either in public or in private to manifest one’s religion or belief in worship, observance, practice and teaching is not absolute and in terms of Article 15 (7) of the Constitution such fundamental right can be derogated from on the grounds of such restrictions as may be prescribed by law in the interest of national security, public order and the protection of public health or morality, or for the purpose of securing due recognition and respect for the rights and freedoms of others or meeting the just requirements of the general welfare of a democratic society. There is no gainsaying that limitations placed by domestic legislation would pose derogations within the meaning of the restrictions contemplated by Article 15 (7) and this would further fortify the view I have taken of the necessity to obtain sanction of the law in respect of the festival offerings in Munneswaram.

In the circumstances I affirm the judgment of the Court of Appeal dated 29.08.2013 and dismiss the appeal of the Petitioners accordingly.

MOHAN PIERIS. P.C. C.J.

CHIEF JUSTICE

PRIYASATH DEP. P.C.J

I agree.

JUDGE OF THE SUPREME COURT

ROHINI MARASINGHE.J

I agree.

JUDGE OF THE SUPREME COURT